



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/18/2026 - 09:00 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

August 18, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.

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20-PRO-01463	Estate of Regina Teresa Tobelman	First and Final Account and Report of Administrator and Petition for its Settlement, for Allowance of Compensation for Ordinary Services and for Final Distribution
Line 1	Petitioner: Stelter, Wesley H. (SHJEFLO, WALTER E.) Decedent: Tobelman, Regina Teresa Personal Representative: Stelter, Wesley H. Proposed Personal Representative: Stelter, Wesley H.	Petition for Final Distribution

Tentative Ruling:**APPEARANCE OPTIONAL**

Petition for Final Distribution is GRANTED absent cogent objection. As the Petition provides two different amounts for the requested statutory fees and the statutory fee calculation is incorrect, the Court confirms that the attorney and personal representative statutory fees are granted in the amount of \$11,263.92 each.

24-PRO-00163	Guardianship of MORIAH JO SIMMONS	
Line 2	Petitioner: ESTRADA, ISOLINA (DAYE, ROBERT E.) Petitioner: ORTEGA, MICHAEL (DAYE, ROBERT E.) Ward: SIMMONS, MORIAH JO (STEINER, KATRINA M.) Guardian: ESTRADA, ISOLINA (DAYE, ROBERT E.) Proposed Guardian: ORTEGA, MICHAEL Objector: SIMMONS, ADONIS (LUBARSKY, ALEXANDER H.) Father: SIMMONS, ADONIS (LUBARSKY, ALEXANDER H.)	Guardianship Annual Review

Tentative Ruling:**NO APPEARANCE**

The Guardianship shall continue and be reviewed in one (1) year. The minor's counsel and Guardian shall file their reports no later than ten (10) days prior to the next review hearing. The next review hearing is set on August 20, 2027 at 9:00 am.

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25-PRO-00073	Conservatorship of Brandon Reyes Iturribarria	
Line 3	Proposed Conservatee: Reyes Iturribarria, Brandon (ROWE, JESSICA L.) Petitioner: Reyes Castillo, Jorge (Pro Se) Conservatee: Reyes Iturribarria, Brandon (ROWE, JESSICA L.) Conservator: Reyes Castillo, Jorge	Conservatorship Review - Annual
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist. Conservator is ordered to file a completed proof of service of the post-move change form [GC-080] which is signed, by someone other than himself, demonstrating when it was mailed to mother. This is to be done within 30 days.		

25-PRO-01081	Conservatorship of JUSTIN LEE	(LIMITED) SUCCESSOR
Line 4, 5	Proposed Conservatee: LEE, JUSTIN (DURRANS, KATHLEEN A.) Petitioner: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE ELLARD, JAN E.) Proposed Conservator: HANSEN, MATEEN Conservatee: LEE, JUSTIN (DURRANS, KATHLEEN A.) Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN Interested Party: KWONG, KAREN Interested Party: LEE, MILTON	Petition for Termination of Conservatorship Appointment of Conservator for Estate
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) Two petitions are before the court: Conservatee's petition to terminate the limited conservatorship of the person, and the Public Guardian's petition to appoint a successor limited conservator of the estate [a private fiduciary]. There is no formal objection to either petition, but the court seeks some clarity. As it relates to the limited conservatorship of the person, by all information submitted it appears as though Justin has thrived as he has matured into adulthood. However, there remains on file a single capacity declaration filed in 2008, when he was 18 years old, which stands uncontroverted. There is no information that Justin has been evaluated in the past 18 years. The court understands the importance of affording Justin the least restrictive alternative, and would otherwise be prepared to		



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grant his unopposed petition for termination, but wants to hear from his counsel and the Public Guardian as to the absence of an updated capacity declaration.

As it relates to the petition to appoint a successor limited conservator of the estate, counsel for the Conservatee is to appear and provide her client's position. Assuming the court is informed at the hearing from his attorney that he has no objection, the Court intends to make the following orders:

The Petition to Appoint Successor Limited Conservator of the Estate is GRANTED as follows:

1. Mateen Hansen is appointed successor limited conservator of the estate of Justin Lee and successor trustee of the Justin Lee d4A Special Needs Trust, and a limited conservatorship of the estate continues to be the least restrictive alternative to protect the conservatee.
2. The successor limited conservator is granted the following powers, as outlined in Probate Code §1830(b):
 - a) To contract on behalf of the conservatee and the limited conservatorship estate as permitted in Probate Code §1830(b)(3),
 - b) To invest limited conservatorship assets in the manner permitted in Probate Code §§2570-2574, per Probate Code §1830(b)(5), and
 - c) To pay the debts and expenses of the conservatee and the limited conservatorship estate, subject to Probate Code §§2430-2431, per Probate Code §1830(b)(2).
3. The request to limit the conservatee's civil and legal rights to fix the residence or specific dwelling, to consent or withhold consent to medical treatment, and to make decisions regarding education is denied. However, the Court will limit the conservatee's civil and legal rights in the narrow area to allow the successor limited conservator access to his confidential financial records and papers, thereby granting that power to the limited conservator of the estate.
4. Bond for the limited conservatorship of the estate is waived per Probate Code §2323. Bond for the Justin Lee d4A Special Needs Trust be fixed at \$1,350,727.14. The issue of bond for the limited conservatorship of the estate and SNT (i.e. whether it needs to be increased or reduced) shall be revisited upon the filing of the inventory and appraisal.
5. A non-appearance hearing on the successor limited conservator's filing of the following documents is set for 12/16/2026:
 - a) Inventory and Appraisal (GC-040).
 - b) Notice of Filing of Inventory and Appraisal and How to Object to the Inventory or the Appraised Value of Property (GC-042).
6. Pursuant to Probate Code §1830, the successor limited conservator shall file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.
7. The Court makes an order that this limited conservatorship, absent a judicial finding of hardship, is subject to present and future assessments for the cost of the investigation, pursuant to Probate Code §1851.5. The Court order payment of \$850.00 from the trust to the Superior Court of San Mateo County within ninety (90) days.



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8. The limited conservatorship of the estate shall be reviewed in one (1) year.

25-PRO-01099	IN THE MATTER OF THE LAVERNE M. BARRETT TRUST DATED AUGUST, 10, 1999, AS AMENDED AND RESTATED ON JUNE 30, 2015	PETITION FOR SETTLEMENT OF SECOND AND FINAL ACCOUNT OF TRUSTEE
Line 6	Petitioner: Barrett, Marianne L. (PEROTTI, MATTHEW J.) Decedent: BARRETT, LAVERNE M.	Petition Hearing

Tentative Ruling:

NO APPEARANCE

Petition for Settlement of Second and Final Account of Trustee is GRANTED absent cogent objection.



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25-PRO-01482	IN RE: THE GEORGE HERBST 2009 TRUST, DATED APRIL 9, 2009	RESPONDENT JOHN P. HURABIELL'S NOTICE OF MOTION AND MOTION TO STRIKE PETITIONERS' PRAYER FOR PUNITIVE DAMAGES IN THE PETITION
Line 7	Petitioner: Schach, Miriam (WEINBERG, JONATHAN D.) Respondent: HURABIELL, JOHN P. (WEBER, PETER L ALI, SHANIA SHEHANA) Decedent: HERBST, GEORGE	Motion to Strike

Tentative Ruling:

NO APPEARANCE

Motion to Strike is DENIED as moot because the underlying Petition was denied on 3/23/2026.

26-PRO-00140	Estate of David Leon Hill	Continued from 06/30/26
Line 8	Petitioner: Hill, Danielle (WEIL, ARTHUR S) Decedent: Hill, David Leon Proposed Personal Representative: Hill, Danielle Assignee: Inheritance Funding Company, Inc. Assignee: Probate Advance, LLC Assignee: ProbateCash, LLC Beneficiary: Hill, Amber	Letters of Administration Hearing with ATA

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Parties to appear to provide status as it relates to whether or not decedent's spouse is going to proceed by way of either a spousal property petition [DE-221] or a petition to determine succession to primary residence [DE-310]. If not, Petitioner must comply with LR 4.16, including a written statement of surviving spouse as to her election. If that is provided at the hearing, the petition will be GRANTED. Bond will be set at \$895,000.



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26-PRO-00676	Estate of Doris Jean Quiring	Continued from 07/01/26
Line 9	Petitioner: Little, Bonnie (BIDDLE, ALEXANDER M.) Decedent: Quiring, Doris Jean Interested Party: Swackhamer, William (TAHENY, KEVIN A.) Proposed Personal Representative: Little, Bonnie	Probate of Will and Letters Testamentary Hearing w/ ATA

Tentative Ruling:

APPEARANCE ORDERED

The Court requires a copy of the trust to be attached or submitted along with the first amended petition [in order to ensure proper notice to all interested persons]. If that is presented at the hearing, the court would be prepared to GRANT the petition, setting bond at \$20,000 because the petitioner is not a California resident.

26-PRO-00678	Estate of ERNA IGNACIO BERTULDO	
Line 10	Petitioner: GARCIA, LIZA MISHELLE BERTULDO (Pro Se) Decedent: BERTULDO, ERNA IGNACIO Proposed Personal Representative: GARCIA, LIZA MISHELLE BERTULDO	Letters of Administration Hearing

Tentative Ruling:

NO APPEARANCE

The matter will be continued because petitioner filed an amended petition on 8/13/2026, which does not afford sufficient time for notice and proof of service. Petitioner must serve the amended petition on all heirs, and file the proper proof of service form [DE-120]. The caption in the amended petition does not match item 2(c), as the caption does not state whether the petitioner is seeking limited authority under the IAEA, yet item 2(c) does. Petitioner is to submit a declaration clarifying this issue. The amended petition states that all heirs waive bond, but no waiver is attached. The Court will set bond if the amended petition is granted unless the judicial council waiver of bond is signed and attached. Further publication is not required. A formal order shall be filed. The matter is continued to October 27, 2029 at 9:00 a.m.



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26-PRO-00690	Guardianship of ELISA NOEMY ALVAREZ PORTILLO	
Line 11, 12	Petitioner: ALVAREZ, EVA IRENE (BHAKHRI, ASHWANI K.) Ward: ALVAREZ PORTILLO, ELISA NOEMY Proposed Guardian: ALVAREZ, EVA IRENE	Petition for Special Immigrant Juvenile Findings Appointment of Guardian for Person of the Minor

Tentative Ruling:

APPEARANCE OPTIONAL (Zoom not allowed)

The petitions are denied for the following reasons: no declaration by the minor with a factual basis as to why the petition for SIJF should be granted [statements of counsel in the petition are not admissible evidence]; no consent/proof of service on parents for both petitions; no consent/proof of service on paternal grandfather or any of the siblings for the petition for guardianship.

26-PRO-00915	Estate of JOANNA MARIA BORTOLIN	
Line 13	Petitioner: Reynolds, Lisa A. (WINSLOW, CRAIG V.) Decedent: BORTOLIN, JOANNA MARIA Proposed Personal Representative: Reynolds, Lisa A.	Letters of Administration Hearing

Tentative Ruling:

NO APPEARANCE

Petition is GRANTED absent cogent objection.



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PRO094848	CONSERVATORSHIP OF JENNIFER MARIE GORMAN	to Conservator RE: Why the Conservatorship Should Not be Transferred to El Dorado County
Line 14	Proposed Conservatee: GORMAN, JENNIFER MARIE (ROSS, REBECCA) Petitioner: JENNINGS, LESLIE J. (CONRAD, RENEE J.) Petitioner: VISTICA, MARION C. (CONRAD, RENEE J.) Conservatee: GORMAN, JENNIFER MARIE (ROSS, REBECCA) Conservator: JENNINGS, LESLIE J. (CONRAD, RENEE J.) Conservator: VISTICA, MARION C. (CONRAD, RENEE J.) Brother: GORMAN, MICHAEL Sister: Jennings, Leslie J. Sister: Vistica, Marion C.	Order to Show Cause Hearing
Tentative Ruling: APPEARANCE OPTIONAL The Conservatorship is transferred to El Dorado County; the OSC is discharged.		

PRO121966	CONSERVATORSHIP OF KENNETH E. DAVIS	Petition for (1) Acceptance of Resignation of Limited Co-Conservator; (2) Confirmation of Limited Co-Conservators; and (3) Modification of Visitation Mandate RE: Co- Conservator's Updated Amended Order and Letter; & Issue of Monthly Visits - Continued on 04/03/2026
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Proposed Conservatee: DAVIS, KENNETH EARL
Petitioner: DAVIS, JAMES A. (GRUBER, JOSEPH E., JR)
Petitioner: RODGERS, PRISCILLA M. (GRUBER, JOSEPH E., JR)
Proposed Conservator: DAVIS, ISABELLA
Proposed Conservator: DAVIS, JAMES A.
Proposed Conservator: DAVIS, WENDY
Proposed Conservator: RODGERS, PRISCILLA M.
Conservatee: DAVIS, KENNETH E.
Conservator: DAVIS, JAMES ALAN (GRUBER, JOSEPH E., JR)
Conservator: RODGERS, LESTER V. (FLEISHMAN, ALLEN H.)
Conservator: RODGERS, PRISCILLA M. (GRUBER, JOSEPH E., JR)

Petition Hearing

Status Hearing

Tentative Ruling:**APPEARANCE OPTIONAL**

Petition for (1) Acceptance of Resignation of Limited Co Conservator; (2) Confirmation of Limited Co-Conservators; and (3) Modification of Visitation Mandate is GRANTED absent cogent objection. Formal order required for the Petition for Acceptance of Resignation.

The conservatorship shall continue and be reviewed in two (2) years. [this order pertains to the 2025 biennial review] The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist. Amended Letters can issue once the Court signs the Amended Order Appointing Conservator (GC-340), which appears to have been filed on 3/27/2026.

The Court confirms that independent counsel is to be appointed for the Conservatee prior to the Petition for Appointment of Successor Limited Conservators set for hearing on September 11, 2026 at 9:00 am.

17-PRO-01298 CHARLES A. JONES TRUST

PETITION FOR ORDER TO
(1) CONFIRM TRUSTEE'S
AUTHORITY TO SELL
TRUST REAL PROPERTY;
(2) DIRECT FORMER
TRUSTEE TO ACCOUNT
FOR AND DELIVER
TRUST ASSETS; AN
DISGORGE ATTORNEYS'
FEES TO THE EXTENT
PAID FROM TRUST
ASSETS

Line 17

Petitioner: GRAYS-JONES, HELEN (REID, ANTHONY K.)
Petitioner: STILES, KELSEY (NGUYEN, JULIETTE D.)

Petition Hearing

Add-On



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Respondent: SPENCER, SANDRA (VELASQUEZ, CLARE
CAPACCIOLI)
Decedent: JONES, CHARLES A.

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Petitioner is directed to appear and provide additional information as to whether deceased Limited Partner Myrtle Ogletree's successors in interest received notice of this Petition. If Petitioner provides information for the Court to determine that notice is sufficient, the Court intends to GRANT the requests in the Petition to Confirm Trustee's Authority to Sell Trust Real Property, and to order former trustee to account for and deliver trust assets. Sandra Spencer, former trustee of the Charles A. Jones Trust dated August 19, 1999, as restated, is to deliver and account for all cash assets belonging to the Charles A. Jones Trust dated August 19, 1999, as restated, within five (5) days of this Court's order, including the loan proceeds of the Promissory Note Secured by Deed of Trust in the original principal amount of \$2,500,000, signed by Sandra Spencer, as trustee, on January 10, 2022; Although an appeal has been filed, this order is made per PrC 1310.

The request to disgorge Sandra Spencer's attorneys and agents to the extent they possess cash assets belonging to the Jones Trust is CONTINUED to January 25, 2027 at 9:00 am for Petitioner provide legal authority for this request and name the party or parties to whom this request is directed, as it does not appear to be directed to Sandra Spencer.

Hearings Total: 17